

Extremism

Presented by



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What is Extremism

"The holding of extreme views or beliefs that go beyond what is considered reasonable or acceptable in society. It often leads to intolerant attitudes and in some cases, violent actions."

Blasphemy

"It's when someone's words or actions cross the line, disrespecting the sacred beliefs, symbols, or figures that people hold dear."

Objectives of discussion

To argue that blasphemy should not be treated as a Hadd offence.

To underscore that there is no ijma on the existence of a mandatory death penalty for non-Muslims.

To underscore that the current narrative on the law is not an accurate representation of the Hanafi tradition and therefore, not an accurate representation of the Islamic legal tradition.

To argue that the law cannot be indiscriminately applied to both Muslims and non-Muslims.

To highlight the fact that the option of a pardon exists within the Islamic legal tradition for those who insult the Prophet.

A Brief History



Texts from religions

Jewish

In Jewish history, blasphemy was considered a grave offense under the Torah, specifically prohibiting disrespect toward God's name (Leviticus 24:16). It was punishable by death in ancient Israel, reflecting the centrality of reverence for God in Jewish law and culture.

Christianity

In Christian history, blasphemy was viewed as a severe sin, particularly in medieval times, involving disrespect toward God. It was often met with harsh punishments, including death.

Hinduism

In Hindu history, blasphemy was typically seen as disrespect toward sacred deities or practices, often resulting in social ostracism or public humiliation.

Suppression of free speech

- ▶ Tyrannical regimes often use blasphemy laws to suppress free speech like Galileo was tried for heresy and blasphemy by the Catholic Church for supporting the heliocentric model, leading to his forced house arrest

Colonial background

**Controversial
laws of 1860**

Section 295 and
298 were
introduced

**Mahase Rajpal
case 1927**

He was
murdered by
Ilm-ud-din, a
man seeking
revenge for the
perceived insult

Blasphemy laws in Pakistan

General Zia Ul Haq's role

- ❑ Introduced laws like section 295-A, 295-B and 295-C that criminalized any kind of hate speech against Islam.
- ❑ Section 298-B and 298-C were also introduced



Elephant in the room

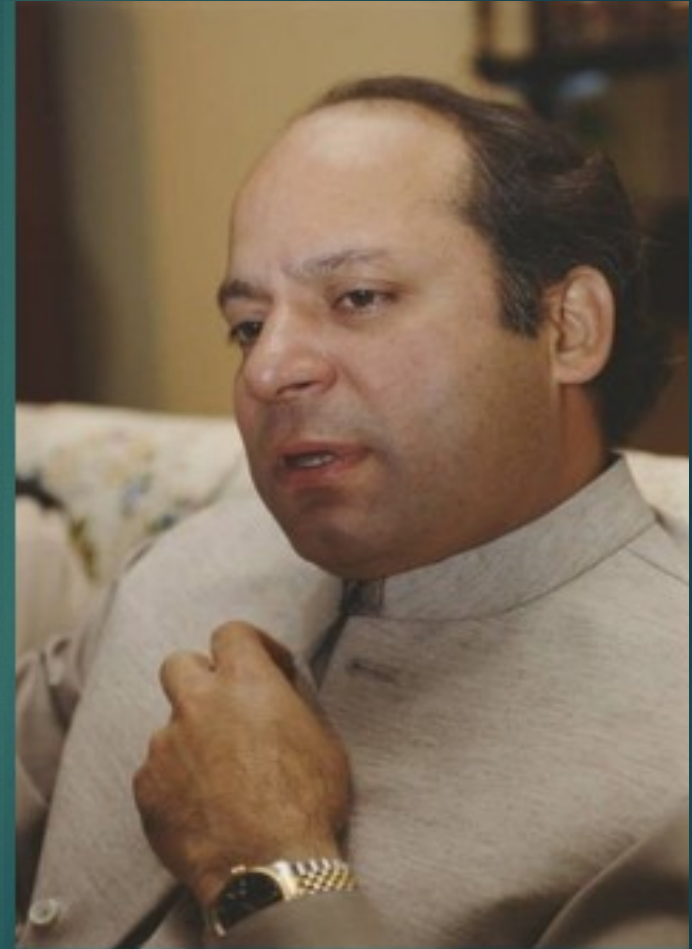
Ismail Quraishi

- ▶ In 1984, a lawyer, Ismail Qureshi, falsely told Provincial sharia court that Muslim scholars have ijma on the death penalty on blasphemy. This led to the introduction of Section 295(c), which imposed the death penalty for blasphemy against the Prophet Muhammad (PBUH)
- ▶ It was not passed through presidential ordinance



Nawaz's Role

- ▶ In 1991 the punishment of life imprisonment was removed from the law, making the death penalty mandatory and fixed, without any possibility of repentance.
- ▶ By forcefully imposed by Nawaz Sarif, Section 295-C finally took on the form that it has retained till this day.



Why blasphemy laws are important

- ▶ Maintaining societal order and upholding Islamic principles
- ▶ Preserving honor of sacred personalities



The Love of the Prophet Muhammad (PBUH) in Islam

Prophet Muhammad (PBUH) is not just a spiritual guide but the embodiment of excellence.

Quran explicitly states in **Surah Al-Ahzab (33:6)** that the Prophet is "**dearer to the believers than their own selves**"

Offensive acts like *The Satanic Verses* by Salman Rushdie and cartoons of Prophet Muhammad (PBUH) in *Charlie Hebdo* can be prevented

From Islamic Sharia:

Imam Ahmed ibn e hanbal

Scholars like **Imam Ahmad bin Hanbal** have supported severe penalties for blasphemy, arguing that it serves as both justice for the crime and a deterrent for others.

Other Scholars

Ibn Taymiyyah,

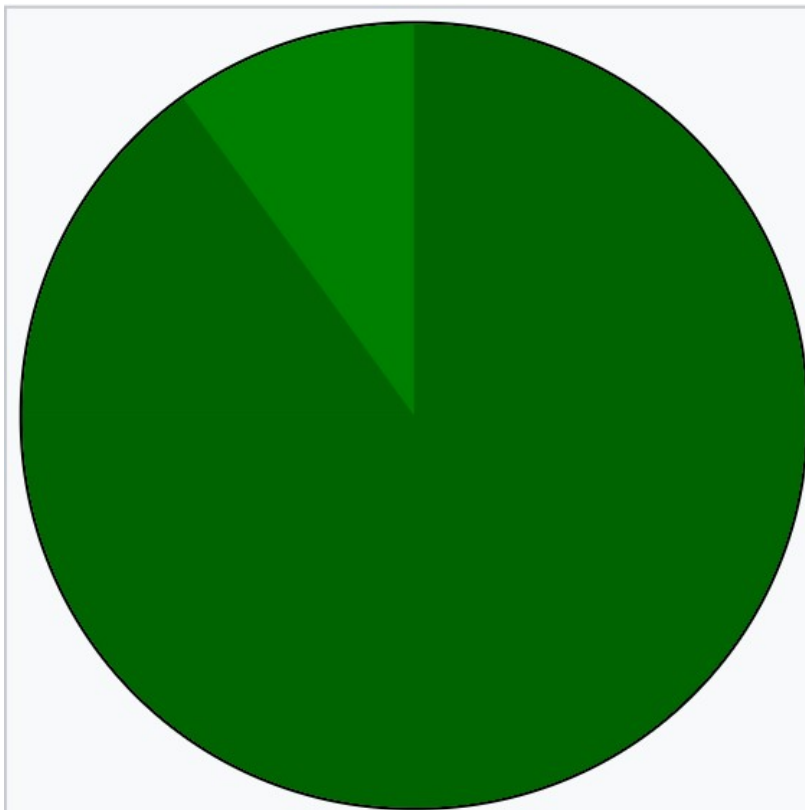
In his work **As-Sarim Al-Maslul Ala Shatim Ar-Rasul**, holds that the deliberate insult of the Prophet by a Muslim is an act of apostasy, deserving the death penalty.

Al-Bazzazi

A Hanafi jurist, stated that blasphemy by a Muslim is so grave that it takes precedence over repentance, as it disrupts societal harmony and insults the foundation of Islam.

The Historical dishonesty

Islam in Pakistan



Islam in Pakistan^[5]

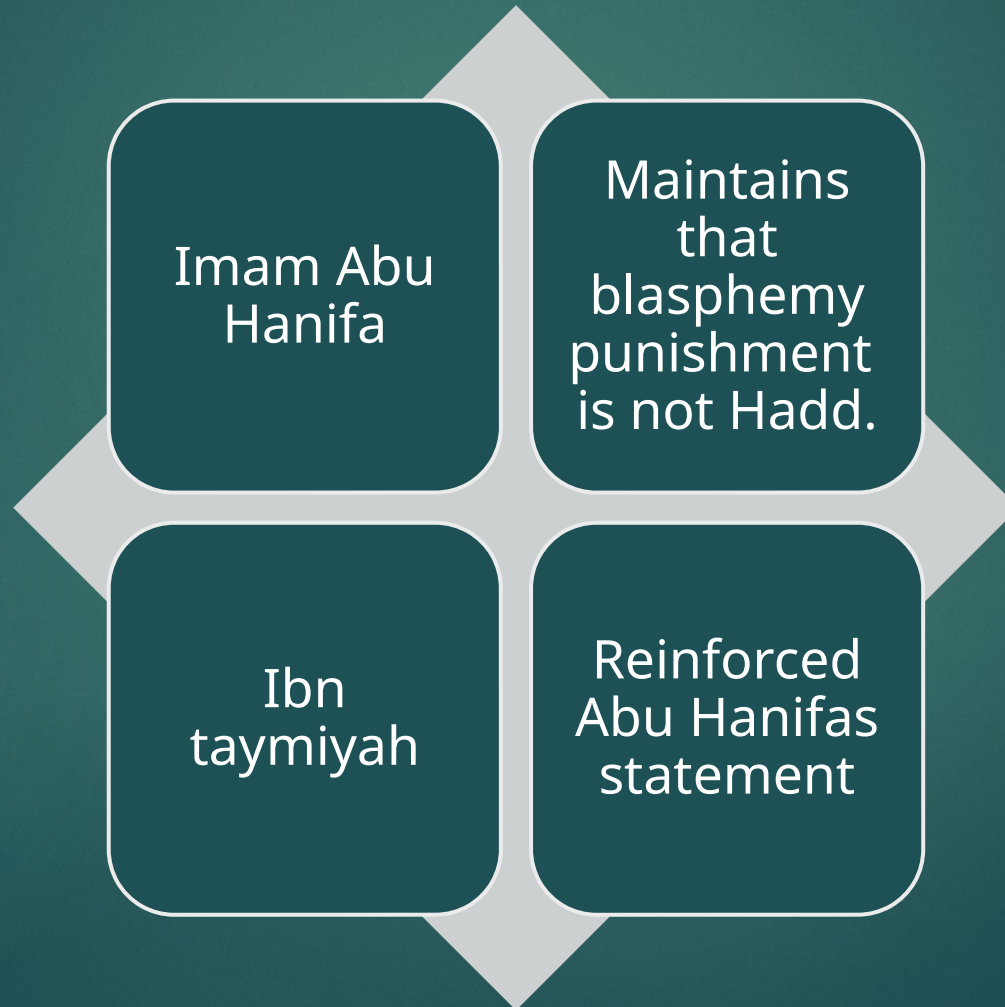


The background features a stylized, dark teal illustration of a balance scale, symbolizing justice. The scale is positioned centrally, with its pans hanging from a horizontal beam. Below the scale, there are clusters of roses. In the top right corner, there is a solid red rectangular block.

Hadd and Tazeer

- ▶ HADD REFERS TO FIXED PUNISHMENTS FOR CERTAIN OFFENSES AS INTENDED BY ALLAH, CONSIDERED MANDATORY UNDER ISLAMIC LAW.
- ▶ TAZEER PERTAINS TO DISCRETIONARY PUNISHMENTS FOR OTHER CRIMES, LEFT TO THE DISCRETION OF THE ISLAMIC JUDGE.

Sunni Jurripodence



Other Scholars

Ibn Al Bazzazi

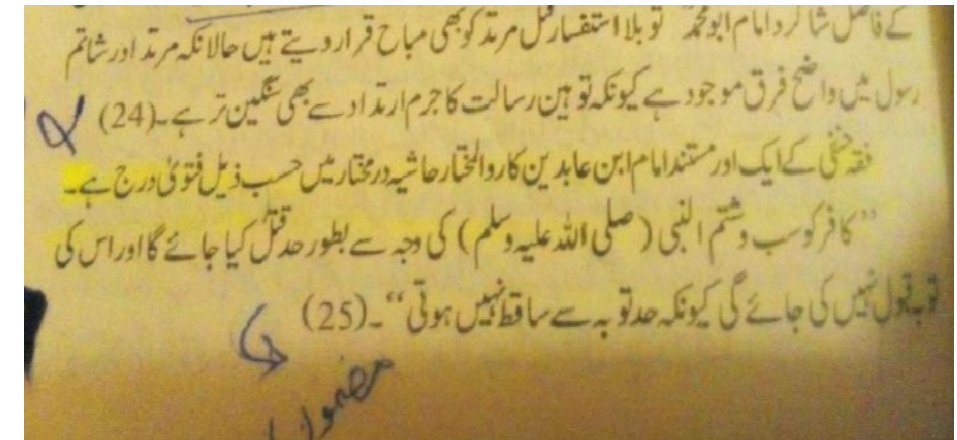
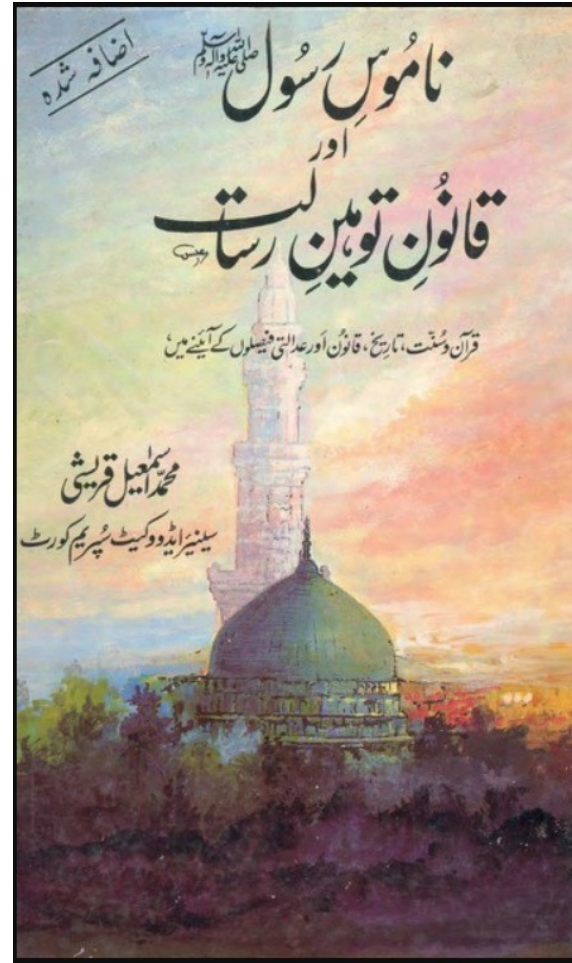
Misinterpreted
Abu Hanifa's
stance on
punishment for
non mulims

Ibn Abidin

Corrected
Bazzaz i's
mistake issuing
Fatwa on
blasphemy as a
Tazeeri offence.

Changing the law

Falsely quoted Al Bazzazi on having ijma of scholar on Capital punishment for non Muslims



Actual Quote of Bazzazzi

A Muslim, who became apostate because of blasphemy, shall be executed and his repentance will not be accepted because in hadd cases the repentance is void.

Qureshi's Quote of Bazzazzi

Kafir (Non-Muslim) contemnor of the Prophet Muhammad will be killed as a hadd punishment and his repentance will not be accepted as in hudood cases the act of repentance is not accepted.

Al Sarim Al Maslool

The parliament claimed that Ibn Tammiyah, in this book, relates an ijma on killing anyone who insults the Prophet.

However, Ibn Tammiyah, in this very book, explicitly cites Abu Hanifah as saying that a non-Muslim (dhimmi) will not be killed for insulting the Prophet.²⁹

Fatawa-e- Alamgiriyyah

The parliament claimed that scholars of Fatawa-e-Alamgiriyyah relate an ijma on awarding the death penalty to anyone who insults the Prophet.³⁰

However, a review of the primary text reveals that these scholars agree that non-Muslims will not be killed for insulting the Prophet.

Fatawa-e-Shami

The parliament claimed that Ibn Abidin, in the Fatawa-e-Shami, relates an ijma on awarding the death penalty to anyone who insults the Prophet.

In fact, Ibn Abidin, in this book, states that "If the individual in question is a non-Muslim, he will not be killed for insulting the Prophet"³¹

Saif-al- Maslool

Finally, the parliament claimed that Taqi-ud-Din Subki, in Saif-al-Maslool, relates an Ijma on killing anyone who insults the Prophet.

On the contrary, Subki clearly cites the differing Hanafi position "If a non-Muslim (dhimmi) insults the Holy Prophet, he will not be punished by death. A non-Muslim is not killed for his disbelief (kufr) or polytheism (shirk). Kufr/Shirk are bigger sins than insulting the Prophet.-(Therefore non-Muslims will not be killed for insulting the Prophet.)"³²

معنی تقنی عشرانی

حنفی مسلک میں گستاخی کی سزا قتل نہیں ہے۔

”ذمی خواہ کیسے ہی بڑے جرم کا ارتکاب کرے، اس کا ذمہ نہیں ٹوٹتا، حتیٰ کہ جزیہ بند کر دینا، مسلمان کو قتل کرنا، نبی صلی اللہ علیہ وسلم کی شان میں گستاخی کرنا یا کسی مسلمان عورت کی آبروریزی کرنا بھی اس کے حق میں ناقض ذمہ نہیں ہے۔ البتہ صرف دو صورتیں ایسی ہیں جن میں عقد ذمہ باقی نہیں رہتا۔ ایک یہ کہ وہ دارالاسلام سے نکل کر دشمنوں سے جا ملے۔ دوسرے یہ کہ حکومت اسلامیہ کے خلاف علانیہ بغاوت کر کے فتنہ و فساد برپا کر دے۔“ (الجہاد فی الاسلام ص ۲۸۹)

"Whoever by words, either spoken or written, or by visible representation or by any imputation, innuendo, or insinuation, directly or indirectly, defiles the sacred name of the Holy Prophet Muhammad (peace be upon him) shall be punished with [death]"

INDIAN HATE SPEECH LAWS

AMERICAN LIBEL LAWS

"Whoever by words, either spoken or written, or by visible representation or by any **imputation**, **innuendo**, or **insinuation**, directly or **indirectly**, defiles the sacred name of the Holy Prophet Muhammad (peace be upon him) shall be punished with [death]"

AUSTRALIAN DEFAMATION LAWS

innuendo = إشارة
insinuation = كناية
imputation = تلميح



Effects of blasphemy

Mob Lynching

"Refers to a group of people taking the law into their own hands, violently attacking and often killing someone without any legal authority or due process. It's driven by anger, prejudice, or the desire for vigilante justice".

Effects of Mob lynching

Asia Bibi case

1).In 2009 she was accused of blasphemy over a Muslim woman on drinking from the same container.

2).Her sentenced to death sparked international outrage

Salman Taseer case

He was assassinated by his bodyguard, Mumtaz Qadri, for opposing Pakistan's blasphemy laws and supporting clemency for Asia Bibi.

❑ **Priyantha Kumara Case**

In 2021, Priyantha Kumara, a Sri Lankan factory manager in Sialkot, was falsely accused of blasphemy and killed by a mob of factory workers.

❑ **Mashal Khan case**

In 2017, Mashal Khan, a 23-year-old university student, was lynched by fellow students in Mardan after being falsely accused of blasphemy.





Misuse of blasphemy laws



- **For personal gain**

Khaleel Tahir Sindhu, a lawyer and former **Member of the Punjab Assembly**. In 2013, Sindhu was alleged to have exploited blasphemy allegations against a Christian man over a land dispute. The man was falsely accused of desecrating the Quran.

- **Misinterpretation of religion**

Ismail Qureshi misinterpreted fatwas to make sure that section 295c was passed.

Stamped fatwa on blasphemy:
The state deserves the right to pronounce **ANY** punishment it seems reasonable for the offense of blasphemy (i.e. it is not a hudd offense)

Removal of the fatwa from the website.
Jamia Binoria replaces the lenient fatwa
with a radically different one which states
the only punishment as DEATH.

[illegible][illegible]

Problems with Blasphemy laws



► **Weapon Against Minorities**

These laws are often used as a tool for persecution, especially against non-Muslims, who are more vulnerable to accusations.

► **Fear Over Freedom**

These laws create an environment of fear, stifling debate, creativity, and intellectual freedom

What did we learnt

- ▶ While not all accused are innocent, extrajudicial killings, such as 14 reported in 2023 alone, highlight the deep injustice in how these laws are enforced. Reform is vital—not to blasphemy, but to ensure due process, prevent misuse, and align actions with the Islamic principles of justice and mercy.